

The Bihar Contingency Fund Act, 1950

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State of Bihar - Act

The Bihar Contingency Fund Act, 1950

BIHAR

India

The Bihar Contingency Fund Act, 1950

Act 19 of 1950

Published on 31 March 1950

Commenced on 31 March 1950

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The Bihar Contingency Fund Act, 1950

Bihar Act

19 of 1950

Published in the Bihar Gazette [Extraordinary,] dated the 31st March, 1950.

An Act to provide for the establishment and maintenance of a Contingency Fund in the State of Bihar.

For the Statement of Objects and Reasons, see the Bihar Gazette [Extraordinary,] of the 2nd March, 1950; for proceedings in the Legislative Assembly. See the Bihar Legislative Assembly Debates, 1950, Volume I, No. 13 pages 105, No. 25, pages 45-50 and for proceedings in the Legislative Council, see the Bihar Legislative Council Debates, 1950, Volume I No. 17, pages 30-31, No. 18, pages 23-28.

Whereas it is expedient to provide for the establishment and maintenance in the State of Bihar of a Contingency Fund to be placed at the disposal of the Governor of Bihar so as to enable him to make advances out of the Fund for the

purposes of meeting unforeseen expenditure of the State pending authorisation of such expenditure by the Legislature of the State under appropriations made by law;

And whereas the Legislature of the State, by clause (2) of Article 267 of the Constitution of India, has been empowered by law to establish such Fund;

It is hereby enacted as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the Bihar Contingency Fund Act, 1950.

(2)

It extends to the whole of the State of Bihar.

(3)

It shall come into force on the 1st day of April, 1950.

2.

Interpretation.

- In this Act, "the Fund" means the Bihar Contingency Fund established under Section 3.

3.

Establishment of the Bihar Contingency Fund.

- On the commencement of this Act, the State Government shall establish in and for the State of Bihar a fund called the Bihar Contingency Fund.

4.

Withdrawal of a sum of four crores of rupees out of the Consolidated Fund of the State and credit thereof to the Bihar Contingency Fund.

- The State Government shall, on the commencement of this Act, withdraw [a sum of four crores of rupees]

[Substituted by Act No. 5 of 1960 'for a sum of three crores of rupees'.]

out of the Consolidated Fund of the State and place it to the credit of Fund:

[Provided that during the period beginning on the date of commencement of the Bihar Contingency Fund (Amendment) Act, 2008 and ending 31st day of march, 2009 this Section shall have effect subject to the modification that for the words 'three hundred and fifty crores' shall be substituted by the words 'two thousand five hundred crores'.]

[Substituted by Bihar Act 30, 2008.]

5.

Purposes for which the Bihar Contingency Fund may be utilized.

- The Fund shall be placed at the disposal of the Governor of Bihar who shall not expend it except for the purposes of making advances from time to time for meeting unforeseen expenditure of the State pending authorisation of such expenditure by the Legislature of the State under appropriations made by law and immediately after the coming into operation of such law, an amount equal to the amount or amounts advanced by the Governor for the purposes aforesaid shall be deemed to have been placed to the credit of the Fund and the amount so transferred shall for all purposes be deemed to be a part of the Fund.

6.

Power to make rules.

- The State Government may, by notification make rules to carry out all or any of the purposes of the Act.

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